

# STATE OF NEW YORK

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662--A

2025-2026 Regular Sessions

## IN SENATE

(Prefiled)

January 8, 2025

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Introduced by Sens. GALLIVAN, BORRELLO, HELMING, MURRAY, OBERACKER, RHOADS, TEDISCO -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to the assault on sports officials

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 14 of section 120.05 of the penal law, as added  
2 by chapter 268 of the laws of 2016, is amended and a new subdivision 15  
3 is added to read as follows:

4 14. With intent to prevent or obstruct a process server, as defined in  
5 section eighty-nine-t of the general business law, from performing a  
6 lawful duty pursuant to article three of the civil practice law and  
7 rules, or intentionally, as retaliation against such a process server  
8 for the performance of the process server's duties pursuant to such  
9 article, including by means of releasing or failing to control an animal  
10 evincing the actor's intent that the animal prevent or obstruct the  
11 lawful duty of the process server or as retaliation against the process  
12 server, [~~he or she~~] such person causes physical injury to such process  
13 server[~~-~~]; or

14 15. With intent to cause physical injury to a sports official, which  
15 shall include umpires, referees, judges, linesmen, coaches, assistant  
16 coaches, and any other person participating in an official or substitute  
17 capacity at a sports contest, such person causes such injury to such  
18 sports official in or on or within any building, structure, athletic  
19 playing field or playground at which the sports contest including pre-  
20 game and post-game activities are conducted; including any and all

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 surrounding parking facilities or areas designated for parking for such  
2 sports contests.

3 § 2. The penal law is amended by adding a new section 240.34 to read  
4 as follows:

5 § 240.34 Harassment of a sports official.

6 A person is guilty of aggravated harassment of a sports official when,  
7 with intent to harass, annoy, threaten or alarm a sports official, which  
8 shall include umpires, referees, judges, linesmen, coaches, assistant  
9 coaches, and any other person participating in an official or substitute  
10 capacity at a sports contest, such person:

11 1. Strikes, shoves, kicks or otherwise subjects such sports official  
12 to physical contact, or attempts to threaten to do the same;

13 2. Causes or attempts to cause such sports official to come into  
14 contact with saliva by expelling such fluid at a sports contest; or

15 3. Communicates a threat to cause physical harm to, or unlawful harm  
16 to the property of a sports official, and the person knows or reasonably  
17 should know that such communication will cause such sports official to  
18 reasonably fear harm to such official's physical safety or property.

19 Harassment of a sports official is a violation.

20 § 3. The education department of the state of New York shall establish  
21 an information campaign to be distributed to all youth sports programs,  
22 school sports programs, amateur sports programs, and intercollegiate  
23 sports programs, requiring such programs to disseminate information to  
24 parents and other spectators of such programs on the protections  
25 afforded sports officials. In particular, the information campaign shall  
26 instruct spectators of such sports programs on the appropriate behavior  
27 to exhibit when observing such applicable sports events and that harass-  
28 ing or assaulting a sports official due to a decision made by such offi-  
29 cial may result in the filing of criminal charges against such specta-  
30 tor. Such sports programs must provide the information prepared by such  
31 department pursuant to this section to parents and other prospective  
32 spectators at the start of each sports season. Such information may be  
33 disseminated via a school's website or if available, a website dedicated  
34 to a youth or other sports program.

35 § 4. This act shall take effect on the one hundred twentieth day after  
36 it shall have become a law.